

SEARCHES INVOLVING STUDENTS AND SEIZURE OF CONTRABAND

This regulation implements Policy 8265, Searches Involving Students and Seizure of Contraband.

A. General Procedures for Searches Involving Students. When a search involving one or more students is permissible under Policy 8265, such search shall be conducted by authorized LCPS officials as follows:

1. Searches by authorized LCPS officials may occur only on LCPS property (including on LCPS buses and other modes of transportation) or at an LCPS-sponsored activity, as defined in Policy 8020, Relations with School Support Organizations.
2. Before conducting any search based on the reasonable suspicion that a student possesses a firearm, explosive, or other weapon capable of causing death or severe injury, authorized LCPS officials shall notify law enforcement and request that officers be present or nearby during the search.
3. Except in emergency circumstances requiring a rapid response, the search of a student or a student's personal belongings shall be conducted in the principal's office or another area outside of public view.
4. Authorized LCPS officials shall clearly identify themselves, inform the student of the item(s) being sought, and provide the student with an opportunity to voluntarily surrender the item(s).
5. Whenever practicable, another LCPS employee should witness the search.
6. Any search involving a student shall remain confidential. Information related to the search shall be shared only with LCPS employees who have a legitimate need to know in order to perform their duties and, as appropriate, with law enforcement.
7. A member of the school's Unified Mental Health Team may meet with the student following the search at the request of the student, parent or guardian.
8. A threat assessment shall be completed following any search based on reasonable suspicion that a student possessed a weapon or threatened to harm another person.
9. To the extent any search leads to a concern about the potential for student self-harm, LCPS officials shall contact the Office of Student Mental Health Services for appropriate further action.

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B. Procedures for the General Inspection of LCPS Property. Before conducting any general inspection of desks, lockers or other storage spaces provided to students by LCPS, the principal shall:

1. Develop an inspection plan that includes: 1) The type(s) of LCPS-assigned storage area(s) that will be inspected; and 2) Objective criteria for selecting the students whose LCPS-provided storage spaces will be inspected; and
2. At least 30 days in advance of the inspection, provide written notice to students, parents, and guardians of: 1) The intent to conduct a general inspection of LCPS-provided storage spaces; 2) The purpose of the general inspection; 3) The objective criteria for selecting the students whose storage spaces will be inspected; and 4) A statement that all students are responsible for the contents of their LCPS-assigned storage spaces.

C. Procedures for Individual Searches of LCPS Property Assigned to Students. Whenever practicable, searches of LCPS-assigned storage spaces, technology or other LCPS property should be conducted in the presence of the student to whom the LCPS property is assigned. The student should be informed of the reason for the search and asked to open or otherwise provide access to the property. If the student is not present, the search shall proceed, and the student shall be notified of the search as soon as practicable.

D. Procedures for Searches of Students and their Personal Belongings.

1. Whenever practicable, and unless an emergency requires otherwise, the search of a student shall involve an authorized LCPS official of the same sex, either as the official conducting the search or as a witness.
2. Whenever practicable, a student whose personal belongings are to be searched shall be present and informed of the reason for the search. If the student is not present, the search may proceed, and the student shall be notified of the search as soon as practicable.
3. When authorized LCPS officials conduct a search of a student, they may direct the student to empty pockets and turn them inside out, and to remove shoes, socks, hats and other head coverings, and outer garments (e.g., jackets or coats). Authorized LCPS officials may also inspect the pockets and interior of any items removed from the student's person.
4. LCPS officials shall not conduct pat-down searches and shall avoid touching the student or asking the student to expose areas of the body that are normally covered by clothing.

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E. Seizure of Contraband. Contraband discovered during a search shall be confiscated and handled as follows:

1. Items Prohibited by Law. Any item whose possession is prohibited by law shall be turned over to law enforcement. If immediate transfer to law enforcement is not possible, the item shall be labeled with identifying information and securely stored until retrieved by law enforcement.

2. Other Contraband. Any other contraband shall be labeled and securely stored until it is no longer needed for any disciplinary proceeding. At that time, the item(s) shall be returned to the student's parent or guardian. Upon request, LCPS officials may dispose of or retain the contraband.

F. Notification of Parents and Guardians.

1. An LCPS official shall inform the parent or guardian when a student or the student's personal belongings have been searched.

2. Unless the student poses an imminent risk to their own safety or the safety of others, an authorized LCPS official shall notify the parent or guardian prior to conducting a search of any student or the belongings of any student who meets one or more of the following criteria:

- a. The student is in elementary school.
- b. The student's current mental or physical state prevents them from understanding the search procedures.
- c. The student has a disability that prevents them from understanding the search procedures.

G. Data. Whenever a student or a student's belongings are searched, the search shall be recorded in the Student Information System, regardless of whether contraband is found or the search results in disciplinary action. Search data shall be reviewed by each school's administration and the school's equity lead at least annually.

H. LCPS Officials Authorized to Search. Only the following LCPS officials who have been trained in the proper procedures and standards for conducting searches involving students are authorized to conduct such searches: principals, assistant principals, school security officers, athletic directors, assistant athletic directors, and deans. Principals may request approval for other employee groups to conduct such searches by contacting the Office of School Administration and the applicable Level Office.

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1. In any situation in which no authorized LCPS official is present or available to conduct a search involving one or more students, another LCPS official may be designated to perform the search to ensure the safety of students and others.

I. Training. The training described in Section O of Policy 8265 shall be provided by the Office of School Administration (OSA). OSA shall also provide an annual review of procedures and applicable standards to authorized LCPS officials who have previously completed the required training.

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Legal Ref.: Virginia Code §§ [22.1-272.1](#), [22.1-279.7](#)

Cross Refs.: [Policy 8020](#), Relations with School Support Organizations; [Policy 8265](#), Searches Involving Students and Seizure of Contraband; [Policy 8650](#), Student Technology Acceptable/Responsible Use Policy